

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, June 30, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-04217	Arcelia Ochoa vs Marcos Renteria AG Services, Inc., et al.
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Status Review of Settlement

Appearance required. Appear to address final accounting and whether further court dates are required, final approval of the settlement agreement having been granted by the court on January 6, 2026.

23CV-00529	Barbara Parker-Darragh, et al. vs 99 Olives LLC, et al.
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Review of Case Status

Appearance required. Appear to address status of bankruptcy proceedings.

24CV-00174

Joel Guerrero, et al. vs Sostenes Gallegos

Order to Show Cause re: Dismissal – Notice of Settlement

Appearance required. Appear to address status of settlement reached at the mandatory settlement conference on February 26, 2026. Appear to show cause why the matter should not be dismissed pursuant to that settlement, more than 45 days having passed since the agreement, with the court retaining jurisdiction pursuant to Code of Civil Procedure section 664.6.

24CV-06555

Carol Whitson vs General Motors, LLC

Demurrer

Defendant's demurrer to Plaintiff's fifth cause of action is SUSTAINED WITH LEAVE TO AMEND on the basis of failure to state facts sufficient to constitute a cause of action.

Here, Plaintiff does not allege enough facts to support a fraudulent inducement concealment cause of action. For example and not exhaustive, the complaint (1) fails to allege sufficient facts identifying the specific marketing statements that were misleading and that were relied upon by Plaintiff, (2) fails to allege sufficient facts regarding the dealership personnel, conversations, or content of omissions at the point of sale, and (3) fails to allege sufficient facts tying Thompson Chevrolet Buick's specific acts to GM beyond conveying information from GM to prospective purchasers.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

Motion to Strike

In light of the court's ruling on Defendant's demurrer to Plaintiff's fifth cause of action, Defendant's motion to strike Plaintiff's punitive damages claim (FAC, PRAYER ¶ g, at 12:26) is GRANTED WITH LEAVE TO AMEND.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

24CV-06600

Juan Godoy Montano vs Asuncion Castelo, et al.

Order to Show Cause re: Sanctions

VACATED. Pursuant to the declaration of Mahdis Bahri, filed June 10, 2026, the Court finds GOOD CAUSE NOT TO ORDER SANCTIONS for counsel's non-appearance at the status conference on May 14, 2026. The case management conference currently set for January 25, 2027, at 10:00 a.m. in CONFIRMED.
